

June 15, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12469
(FIFTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of seven (7) DOT Specification MC 312 and DOT 412 cargo tank motor vehicles containing radioactive material, low specific activity liquids. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 180.407 paragraphs (c), (d)(2)(ix) and (e) in that the five-year internal visual inspection and removal of the upper coupler assembly for visual inspection are waived in accordance with alternate test procedures described herein.
5. BASIS: This special permit is based on the application of the Department of Energy dated May 19, 2006, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, low specific activity, (LSA-I)	7	UN2912	N/A
Radioactive material, low specific activity, (LSA-II)	7	UN3321	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are seven (7) DOT Specification MC 312 and DOT 412 cargo tank trailer motor vehicles fabricated from type 316 stainless steel. Tank serial numbers are 64-03858, 64-03859, 64-04268, 64-04275, 64-04294, 64-05385 and 64-05386.

b. TESTING - Each cargo tank must be annually pressure and thickness tested in accordance with the requirements specified in §§ 180.407(g) and § 180.407(i). The requirement to remove the upper coupler (fifth wheel) assembly when performing the external visual inspection required by § 180.407(d)(2)(ix) and the requirement to perform an internal visual inspection in accordance with § 180.407(e) are waived.

c. OPERATIONAL CONTROLS -

(1) The cargo tank motor vehicles must be in dedicated service transporting radioactive material, low specific activity liquids. Additionally, the LSA-I and LSA-II liquids being transported may not exceed an A2 quantity.

(2) The cargo tank motor vehicles must be operated under the DOE Handford Site Onsite Equivalent Safety Program.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. Each cargo tank motor vehicle must be plainly and durably marked "DOT-SP 12469" in accordance with the provisions of §§ 172.302(b) and (c).

c. Packages permanently marked 'DOT-E 12469', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packages marked on or after October 1, 2007 must be marked 'DOT-SP 12469'.

d. Shipping papers displaying 'DOT-E 12469' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special

permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Porter", is written over a faint, circular official stamp.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

June 15, 2006

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: PTolson/kah